

24STCV20876 24STCV20876

County: los-angeles

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Case Number: 24STCV20876 Hearing Date: July 6, 2026 Dept: 400

PETITIONS TO

CONFIRM MINOR'S COMPROMISE

The Court

tenders the following tentative decision in the matter Maria Solis, et al.

v. Edward Jenkins, Los Angeles County Superior Court case number 24STCV20876.

Petitioner requests that the Court grant the Petitions to approve the

compromise of the disputed claims of minors Kobe and Jesse Hurtado (Claimants).

The petitions are granted.

A.

Procedural

Requirements

Jesus Domingo Hurtado (Petitioner)

is the parent and guardian ad litem of Claimants.

Petitioner has filed a Proposed

Order with the petition. (Scruton v.

Korean Air Lines Co., Ltd. (1995) 39 Cal.App.4th 1596, 1603–1605 [stating

that a petition for court approval must comply with Cal. Rules of Court, rules

7.950, 7.950.5, 7.591 and 7.952].) Petitioner uses Judicial Council form MC-350

for the Petition and presents the Court with a Proposed Order Approving

Compromise of the Disputed Claim.

The Petition is thus procedurally

proper.

B.

Substantive Requirements

Court approval is required for all settlements of a minor or dependent adult's claim. (Prob. Code, §§ 3500, 3600; Code Civ. Proc., § 372.)

Pursuant to Probate Code section

3600, subdivision (a)(2), a court may approve a compromise of a pending action or proceeding to which a minor or person with a disability is a party. Upon making such an Order,

[t]he court . . . shall make a further order authorizing and directing that reasonable expenses, medical or otherwise and including reimbursement to a parent, guardian, or conservator, costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or person with a disability.

(Prob. Code, § 3601, subd. (a).)

C.

Discussion

Petitioner has completed form

MC-350s and adequately satisfied their requirements. After reviewing the Petition, the Court finds that the settlement is fair and reasonable. Edward Jenkins, Mary Jenkins, and R. Scott Tucker & Associates (collectively, Defendants) will pay Claimants \$6,500 each. (Petition ¶ 10(b).) Petitioner will also receive a payment under the settlement. (Id. ¶ 11(b).) \$3,638.25 will be taken out of Kobe's settlement as medical expenses. (Id. ¶ 16.) \$1,625 will be taken out of each Claimant's recovery as attorney's fees. (Id. ¶ 13.) Counsel will also be reimbursed for \$318.22 in costs by Kobe and \$318.23 in costs by Jesse. Claimants will thus receive \$918.53 and \$4,556.77 from the settlement, respectively. (Petitions ¶ 16.) In total, counsel is receiving a 25% contingent fee from Claimants. (Ohn Decl. ¶ 7.)

The Court finds that the present arrangement represents reasonable attorney's fees as required under Probate Code section 3601. As recognized in *Schulz v. Jeppesen Sanderson, Inc.*

(2018) 27 Cal.App.5th 1167, 1175, a trial court may act within its discretion to award less than the agreed upon contingent fee amount. Courts consult rule 7.955(b) of the Rules of Court to determine a reasonable attorney's fee for a minor claimant. (Id. at pp. 1174–1175.) “The court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney’s fee would be affected by later events.” (Rules of Court, rule 7.955(a)(2).)

In determining a reasonable attorney's fee, the courts consider the following factors: (1) the fact that a minor is involved and their circumstances; (2) the amount of the fee in proportion to the value of services performed; (3) the novelty and difficulty of legal questions and skill required to provide adequate services; (4) the amount involved and results obtained; (5) the time limitations or constraints imposed by the minor's representative; (6) the nature and length of the professional relationship; (7) the experience, reputation, and ability of the attorneys; (8) the time and labor required; (9) the informed consent of the minor's representative; (10) the relative sophistication of the attorney and representative; (11) the likelihood that the attorney's acceptance of the case would preclude other employment; (12) the nature of the fee as fixed, hourly, or contingent; (13) for contingent fees, the risk of loss, amount of costs advanced by the attorney, and delay in payment of fees and reimbursement of their costs; and (14) other statutory requirements. (Id., rule 7.955(b).)

Here, counsel's fee is reasonable considering the complexity of the present case and its contingent nature. (Ohn Decl.) Thus, the Court finds the attorney's fee award and costs estimate to be reasonable. (Ibid.) Accordingly, Petitioner's petitions are granted.

Conclusion:

The Court grants
the petitions.